

Court No. - 21

Case :- WRIT - C No. - 10542 of 2009

Petitioner :- The Purvanchal Vidyut Vitran Nigam Ltd. And Another

Respondent :- The Electricity Ombudsman And Another

Petitioner Counsel :- H.P. Dube

Respondent Counsel :- Sanjay Kumar Singh

Hon'ble V.K. Shukla,J.

There is illness slip of Sri H.P.Dube Advocate. The case is passed over today.

List in the next cause list. By the next date fixed Sri H.P.Dube Advocate shall ensure filing of counter affidavit.

Sri Sanjay Kumar Singh, learned counsel for the petitioner shall inform of this order in writing to Sri H.P.Dube Advocate.

Order Date :- 19.2.2010

Dhruv

Court No. - 21

Case :- WRIT - C No. - 10542 of 2009

Petitioner :- The Purvanchal Vidyut Vitran Nigam Ltd. And Another

Respondent :- The Electricity Ombudsman And Another

Petitioner Counsel :- H.P. Dube

Respondent Counsel :- Sanjay Kumar Singh

Hon'ble V.K. Shukla,J.

Ten days and no more time is accorded to Sri H.P. Dubey, Advocate to file rejoinder affidavit to the counter affidavit, which have been served upon Sri V.K. Singh on 8.4.2009.

List after ten days.

Order Date :- 8.3.2010

T.S.

Court No. - 21

Case :- WRIT - C No. - 10542 of 2009

Petitioner :- The Purvanchal Vidyut Vitran Nigam Ltd. And Another

Respondent :- The Electricity Ombudsman And Another

Petitioner Counsel :- H.P. Dube

Respondent Counsel :- Sanjay Kumar Singh

Hon'ble V.K. Shukla,J.

List in the next cause list peremptorily amongst top ten cases.

Order Date :- 23.4.2010

T.S.

Court No. - 21

Case :- WRIT - C No. - 10542 of 2009

Petitioner :- The Purvanchal Vidyut Vitran Nigam Ltd. And Another

Respondent :- The Electricity Ombudsman And Another

Petitioner Counsel :- H.P. Dube

Respondent Counsel :- Sanjay Kumar Singh

Hon'ble V.K. Shukla,J.

Sri H.P. Dubey, Advocate informs that he has filed rejoinder affidavit in the Registry of the Court on 24.03.2010, but the same is not on record. The office is directed to trace and place the same on record.

List in the next cause list.

Order Date :- 30.4.2010

SRY

Court No. - 21

Case :- WRIT - C No. - 10542 of 2009

Petitioner :- The Purvanchal Vidyut Vitran Nigam Ltd. And Another

Respondent :- The Electricity Ombudsman And Another

Petitioner Counsel :- H.P. Dube

Respondent Counsel :- Sanjay Kumar Singh

Hon'ble V.K. Shukla,J.

Learned counsel for the respondent has requested that a week's time be accorded to him to file supplementary counter affidavit to bring on record copy of the complaint which has been made by him before Licensee and the entire proceedings which had been undertaken thereafter before licensee.

List on 18.05.2010.

Order Date :- 7.5.2010

Dhruv

Court No. - 21

Case :- WRIT - C No. - 10542 of 2009

Petitioner :- The Purvanchal Vidyut Vitran Nigam Ltd. And Another

Respondent :- The Electricity Ombudsman And Another

Petitioner Counsel :- H.P. Dube

Respondent Counsel :- Sanjay Kumar Singh

Hon'ble V.K. Shukla,J.

Supplementary counter affidavit filed today, same be accepted and taken on record.

Sri. H.P. Dubey, Advocate has stated that this matter be adjourned for today and directed to be listed in the next cause list. Request is accepted.

List in the next cause list. By that time Sri. H.P. Dubey, Advocate may file supplementary rejoinder affidavit.

Order Date :- 8.7.2010

T.S.

Court No. - 21

Case :- WRIT - C No. - 10542 of 2009

Petitioner :- The Purvanchal Vidyut Vitran Nigam Ltd. And Another

Respondent :- The Electricity Ombudsman And Another

Petitioner Counsel :- H.P. Dube

Respondent Counsel :- Sanjay Kumar Singh

Hon'ble V.K. Shukla,J.

There is illness slip of Sri H.P. Dubey, Advocate. The case is passed over today.

List in the next cause list.

Order Date :- 15.7.2010

Dhruv

Court No. - 21

Case :- WRIT - C No. - 10542 of 2009

Petitioner :- The Purvanchal Vidyut Vitran Nigam Ltd. And Another

Respondent :- The Electricity Ombudsman And Another

Petitioner Counsel :- H.P. Dube

Respondent Counsel :- Sanjay Kumar Singh

Hon'ble V.K. Shukla,J.

Put up tomorrow.

Order Date :- 22.7.2010

Dhruv

Civil Misc. Writ Petition No. **10542** of 2009

The Purvanchal Vidyut Vitran Nigam Ltd. and another
Versus
The Electricity Ombudsman of U.P., Lucknow and another

Hon'ble V.K. Shukla, J.

The Purvanchal Vidyut Vitran Nigam Ltd. D.L.W. Varanasi, through its Managing Director as well as Executive Engineer, Electricity Urban Distribution Division, Mayohall, Allahabad, has approached this Court for quashing of the order dated 07.10.2008 passed by the Electricity Ombudsman of U.P in appeal No.123 of 2008 (Narayan Ashram vs. Adhishashi Abhiyanta and another), allowing the appeal preferred on behalf of Shri Narayan Ashram, Shivkuti, Teliarganj, Allahabad.

Brief background of the case, as disclosed in the writ petition, is that petitioner No.1 is subsidiary government company of U.P. Power Corporation Limited. Said company is engaged in distribution and supply of electricity within the area of its operation. Petitioner No.2 is an officer working under petitioner No.1 as well as Prescribed Authority qua the area of operation of Electricity Urban Distribution Division, Mayohall, Allahabad. Shri Narayan Ashram is consumer of petitioners, having three service connection in its premises, being connection Nos.24834, 123265 and 158751. Dispute is in relation to connection No 123265. On 29.06.2007 a show cause notice was issued by petitioner No.2 to respondent No.2, stating therein that consumption bills for the period 30.10.2005 to 29.03.2006 were prepared by M/S K.L.G. Sistail Limited, which was found to be incorrect after scrutiny. It was mentioned in the show cause notice that after analyzing the office record and meter readings, petitioner No.2 came to the conclusion that as per meter reading reported by M/S K.L.G. Sistail Limited, respondent No.2 was liable to pay electricity charges only for a sum of Rs.24400 units, whereas the correct electricity charges payable by respondent No. 2 was for 245280 units. In this background, respondent No.2 was asked to deposit the difference of electricity

charges for a sum of Rs.8,11,086/-. The opposite Party No.2 was asked to submit objection, if any, or alternatively, it was mentioned that recovery would be made. After notice had been issued on 29.06.2007, on 06.07.2007 a letter was sent from the office of Superintending Engineer, mentioning therein that the amount of Rs.8,86,000/- was due and immediately steps be taken for ensuring payment of the same. Respondent No.2 has stated before this Court that the copy of letter dated 29.06.2007 was received on 06.07.2007, and in this background request was made to grant 15 days' time for filing objection. The opposite party No.2 approached the District Consumer Forum, raising grievance and the same was registered as objection No.403 of 2007. In the said matter the District Consumer Forum on 18.07.2007 passed order directing not to disconnect the electricity connection and not to take any coercive measures. After the said order had been passed, request was made on 29.07.2007 to the Executive Engineer clearly mentioning therein that immediate steps be taken for getting the meter tested, amount calculated and requisite bill issued for collecting the amount. Thereafter, opposite party No.2 as per advice of their counsel that the case was not maintainable before the Consumer Forum, and the remedy was available under the U.P. Electricity Supply Code, 2005, in such a situation and in this background an application was moved on 02.02.2008 before the Consumer Grievance Redressal Forum, whereupon, the Superintending Engineering, who happens to be Ex-Officio Chairman of the Consumer Grievance Redressal Forum, passed an order on 08.04.2008, holding that the bill issued in favour of respondents were based on M.R.I. Report, and the same was correct, and it was mentioned therein that in case the opposite party No.2 wanted to say something, it might lodge its objection within three days. The opposite Party No.2 instead of lodging any objection, it filed appeal before the Electricity Ombudsman, U.P. Lucknow on 24.04.2008. In the said appeal, reply was filed on 26.05.2008, and thereafter orders were passed and directives were issued for making assessment of electricity consumption in accordance with the provisions of U.P. Electricity Supply Code, 2005 for the period October, 2005 to March, 2006 treating the meters installed at the premises of respondent No.2 to be defective and billing to be made on the basis of average consumption. At this juncture, present writ petition has been filed.

Pleadings inter se parties have been exchanged, and thereafter, with the

consent of the parties, present writ petition has been taken up for hearing and disposal.

Sri H.P. Dubey, Advocate, learned counsel representing the petitioners, contended with vehemence that in the present case complaint in question was not at all maintainable. Before approaching the Consumer Grievance Redressal Forum, at no point of time any complaint had been filed with the Licensee, as such entire proceedings undertaken is altogether without jurisdiction and further alternatively, it has been contended that Ombudsman has no authority to declare the meter defective, as full fledged procedure has been prescribed to declare the meter defective, as such order passed is unsustainable.

Countering the said submission, Sri Sanjay Kumar Singh, representing respondent No.2, on the other hand, has contended that there had been failure/refusal on the part of Licensee to decide the matter, as such rightly dispute has been and requisite orders have been passed. In such a situation and in this background, writ petition, as has been framed and drawn, deserves to be dismissed.

In order to appreciate the respective argument raised by Sri H.P. Dubey that the complaint could not have been made before the Consumer Grievance Redressal Forum and the same could have been entertained, as Licensee had not been approached, is being looked into, and in this context the provisions of paragraph 7.10. of the Electricity Supply Code, 2005 are being quoted below:

“7.10 Consumer Grievance Redressal Forum and Ombudsman:

- (i) The licensee shall set up Consumer Grievance Redressal Forum in accordance with the UPERC (Consumer Grievance Redressal Forum and Ombudsman) Regulations, 2003, as amended from time to time. The name/addressee and contact telephone numbers of the Forum shall be mentioned in the electricity bill and also displayed in the website of the licensee/Forum;
- (ii) Any consumer aggrieved by any action of the Licensee, in respect of matters mentioned in clause 7.7.1 to 7.7.5 or those covered under the said Regulations may file a complaint with the Licensee;
- (iii) If the Licensee fails to settle the complaint of the consumer within the time limits specified in this Code or otherwise provided in the said Regulations, the consumer may file a complaint in the Consumer Grievance Redressal Forum as per specified procedure under the said Regulations.
- (iv) Any consumer aggrieved by non redressal of his grievances by the Consumer Grievance Redressal Forum, may make a representation for the redressal of his grievances to an Ombudsman as designated/appointed by the Commission in

accordance with the procedure specified in UPERC (Consumer Grievance Redressal Forum and Ombudsman) Regulations, 2003.”

A bare perusal of the provisions quoted above would go to show that an obligation has been cast upon the Licensee to set up Consumer Grievance Redressal Forum in accordance with the UPERC (Consumer Grievance Redressal Forum and Ombudsman) Regulations, 2003, as amended from time to time, and therein any consumer aggrieved by any action of the Licensee, in respect of matters mentioned in clause 7.7.1 to 7.7.5 or those covered under the said Regulations have been given liberty to file complaint with the Licensee; and thereafter if the Licensee fails to settle the complaint of the consumer within the time limits specified in this Code or otherwise provided in the said Regulations, the consumer may file a complaint in the Consumer Grievance Redressal Forum as per specified procedure under the said Regulations, or when the consumer is not satisfied with the decision of the Licensee, then liberty has been given to the consumer to file complaint in the Consumer Grievance Redressal Forum. Thereafter further remedy of representation has been provided for before an Ombudsman as designated/appointed by the Commission in accordance with the procedure specified in UPERC (Consumer Grievance Redressal Forum and Ombudsman) Regulations, 2003. The provisions quoted above further go to show that the Consumer Grievance Redressal Forum will entertain the complaint only when Licensee fails to settle the complaint of the consumer within the time limits specified in the Code or otherwise provided in the said Regulations, or the consumer is not satisfied with the decision of the Licensee.

In the present case, accepted position, though initially disputed, is that after supplementary counter affidavit has been filed, this much has been accepted that qua the said bill request had been made on 07.07.2007, for according two weeks' time and such request was never acceded to, and respondent No.2 pursuant to order of Consumer Forum had requested for correction of Bill, by moving application dated 29.07.2007 before the Licensee, and on the said application, accepted position is that no action/decision was taken. In the rejoinder affidavit filed, there is no specific denial of this fact. Once complaint had been made before the Licensee on 27.09.2007 and the Licensee had not taken any decision thereon, then the complaint was made before the Consumer Grievance Redressal Forum on 02.02.2008, as Licensee

had failed to settle the matter within seven days in terms of paragraph 6.5 of the U.P. electricity Supply Code, 2005. Once complaint had been filed before the Licensee and the Licensee failed to settle the complaint of the consumer, then, in such a situation and in this background, to say that there was no complaint, cannot be accepted, and the Consumer Grievance Redressal Forum was well within its competence to entertain the complaint. In the present case this much has been accepted that Consumer Grievance Redressal Forum in spite of being asked to decide the matter on 04.03.2008 within the time frame provided for failed to decide the matter, then in such a situation and in this background, as provided for, appeal/representation was preferred before the Ombudsman, and thereafter as provided for endeavour was made to settle the matter and conciliation having failed, matter has been decided on merits. The authority of Ombudsman to decide the dispute, cannot be disputed.

Second limb of the argument is that the Ombudsman has transgressed and overstepped its jurisdiction in declaring the meter faulty. As far as authority of Ombudsman is concerned, it is wide enough, wherein it can pass order in the facts and circumstances of the case. Here, in the present case, Ombudsman has considered totality of the circumstances, including consumption pattern and thereafter based on the same has formed opinion that reading recorded in the meter appeared to be incorrect, as it was on excessive side, and it cannot be accepted that it would be more than ten times than the electricity which was being consumed, and in this background has drawn the presumption. Once cogent reasons have been given, taking into account, that no commercial or industrial activity is being carried on with respondent No.2, then there cannot be such rise in the consumption as has been shown during the period in question, and as no reasons have come forward, which could have justified such high consumption. It is true that under U.P. Electricity Supply Code, 2005, full fledged procedure has been provided for, for holding the meter defective and for assessment of the Bills as per the report received, in the event of dispute being there qua accuracy of meter readings, not commensurate to consumption of electricity, stoppage of meter, damage to seal etc. At no point of time, before the Ombudsman any request was made for getting meter checked, and the Ombudsman concerned, on the basis of record produced by petitioners themselves, keeping in view, the consumption pattern, formed such opinion, that meter was defective on the

face of it. Once conscious order has been passed, which is just in the facts and circumstances of the case, then no interference is required by this Court.

Consequently, writ petition fails and the same is dismissed.

23.07.2010.

SRY